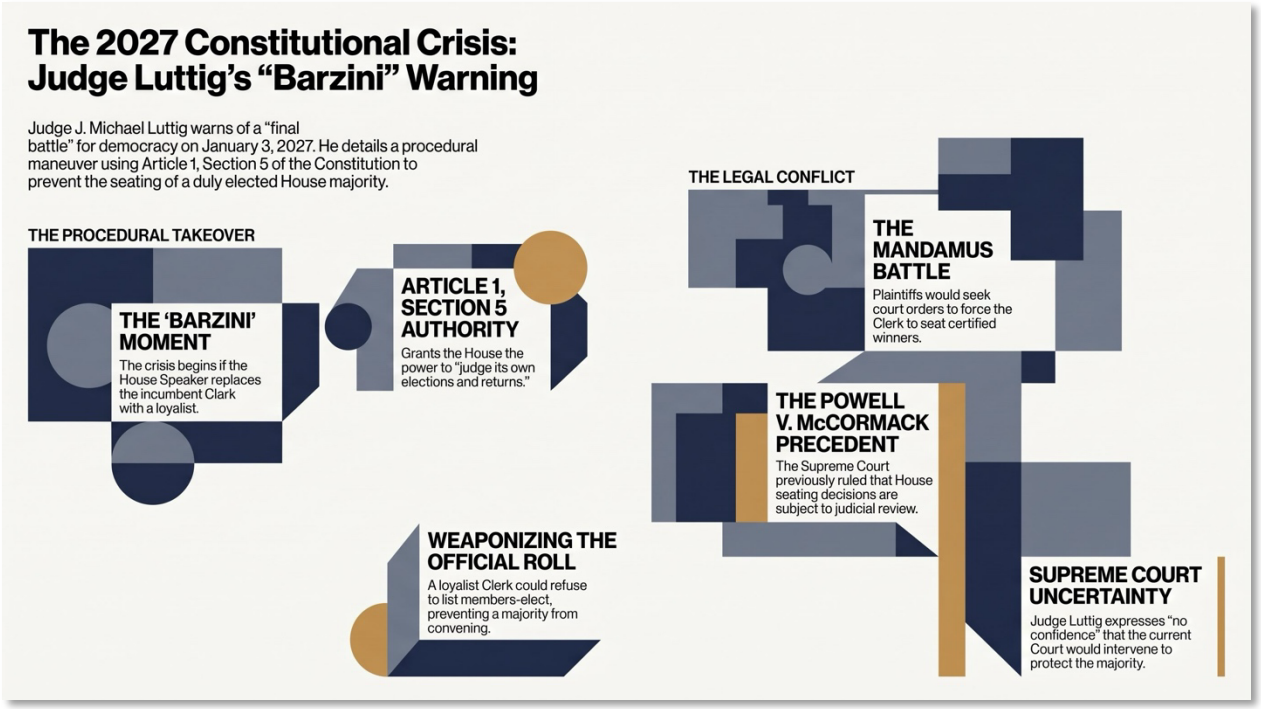
Potential Constitutional Crisis in Midterm Election

~Ex-Federal Judge J. Michael Luttig Warns of a "Final Battle of Democracy"

David L. Passmore, https://davidpassmore.net, 18 September 2026

J. Michael Luttig, a former federal judge, warns at https://youtu.be/sJ2XZoxFj3E?si=SiC7PdJb8G5Z9ahE that a partisan maneuver could block certified Democratic House members from taking their seats on 3 January 2027. He calls this a potential final battle for democracy. I created the following graphic to summarize the potential flow of this battle:



[Download this graphic from https://davidpassmore.github.io/papers/Luttig_Election_Warning.jpeg]

Luttig's warning relies on two sources of evidence. First, public statements by Trump and Mike Johnson, Speaker of the House, provoke deep concerns about election integrity. In a recent Dallas speech, Trump exhorted Republicans to "go out and cheat like hell." On the same Dallas platform, Speaker Mike Johnson declared, "We the Republicans… will never let the Democrats take over the majority in the US House of Representatives." Trump has openly talked about wanting to "control" the midterm elections, despite the Constitution giving the executive branch zero authority over federal elections.

Pay attention, now. The plot unfolds.

Second, Luttig received a phone call from former senior House of Representatives officials who relayed discussions among House members about using a procedural maneuver under the Constitution to prevent the seating of duly elected House members. Article 1, Section 5, Clause 1, states that the House shall be the "judge of the elections, returns and qualifications of its own members." Historically, as the Judge says, this clause allows the House to determine whether to seat or refuse to seat a member-elect.

Also, 2 U.S. Code § 26 requires the clerk of the preceding House to prepare the official roll of representatives-elect before the next Congress convenes. Within House rules, the Speaker can remove and replace the incumbent clerk. In this way, appointment of a partisan loyalist as clerk is possible. And, then, because only representatives entered on the official roll prepared by the clerk are recognized to convene the next Congress, a loyalist clerk could refuse to list duly state-certified Democratic members-elect. This action would prevent those members from taking their seats. This exploit could create a majority for the opposing party.

What response is likely if Johnson implements the plot? I am not a lawyer. I merely wish to summarize Luttig's description of legal gambits likely to follow.

Luttig says that affected members-elect and legal organizations would immediately seek a writ of mandamus in federal district court. The writ would order the House clerk to perform their non-discretionary statutory duty by adding all state-certified members-elect (both Democrat and Republican) to the official roll.

Pushback from Johnson could argue that under Article 1, Section 5, House seating decisions are strictly internal legislative matters that courts cannot review. However, Luttig cites Supreme Court precedent in which refutes the claim that seating decisions are immune from judicial review and establishes that federal courts can decide whether the House acted constitutionally by excluding an elected representative. Johnson's case would be fast-tracked to the U.S. Supreme Court, which would rule on whether excluding certified representatives violates the Constitution and fundamental principles of representative democracy.

Luttig states that he is "not confident at all" that the current Supreme Court would uphold the will of voters. Luttig predicts the Court would actively look for a procedural off-ramp to avoid deciding the core constitutional issue, comparing it to how the Court avoided ruling on the 14th Amendment disqualification

question. He points to the Court's ruling granting broad presidential immunity as evidence that the current majority has a vested interest in supporting Trump. He highlights the Court's willingness to let questionable legal actions proceed through its emergency shadow docket rather than issuing definitive interventions.

So, there you have it. Evil intention to thwart the will of voters. Use of chicken-shit legal loopholes and cul-de-sacs. A Supreme Court hungering to support a takeover of democracy by autocratic thugs.

Luttig advises that citizens must act—right now, not after the election. Make no mistake: Judge Luttig is not happy with you. He wrote after the 2024 election that "American voters 'do not care' about Trump's misdeeds." We need to shape up.

First, Luttig suggests that voters repeatedly demand that Speaker Johnson and House Republicans publicly assure the American people that they will honor election results and never attempt a procedural blockade on 3 January. He argues that any official who refuses to publicly commit to honoring the constitutional process should be hounded and voted out of office. At the same time, Democrat leaders and representatives must explicitly and publicly declare that they will actively resist and never allow such an unconstitutional takeover.

Then, the press must question Trump, Speaker Johnson, and key leadership daily about whether they intend to replace the House clerk or block certified representatives, forcing them onto the public record. Publicly exposing the plan deprives central actors of secrecy and forces accountability.

Luttig urges people to engage. Citizens must turn out to vote in large numbers to establish a clear, unambiguous majority. Further, voters must tell their representatives directly that attempting to bypass certified election results will carry severe political consequences. As Abraham Lincoln urged the nation in 1863 to throw off its bondage to the ruinous political dogmas of its time. "We must disenthrall ourselves, and then we shall save our country," the sixteenth president admonished.

No wild ideation is required to imagine that violence could surround the midterm election. Not from Luttig, though. Despite referencing 6 January and Trump's combat-oriented phrasing, Luttig describes a scenario involving Trump and Johnson that is largely non-violent and institutional. Rather than an armed

assault or physical riot, the procedural maneuver anticipated involves House administrative rules, the House clerk, and Article 1, Section 5 seating power.

J. Michael Luttig served as a U.S. circuit judge on the United States Court of Appeals for the Fourth Circuit from 1991 to 2006. Luttig, a respected conservative jurist, is known for his strong legal expertise and commitment to upholding democracy, often emphasizing the importance of public officials fulfilling their constitutional duties. Luttig is not alone. He has been joined in amicus curiae briefs by more than 175 former federal and state judges appointed to leadership positions in their careers by presidents and governors of both major political parties.